

ASCII MASTER FLOW — PANEL 1/12: Core concept, origin and constitutional identity

PARLIAMENT = President + Rajya Sabha + Lok Sabha (Article 79)

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- +-- law-making and constitutional amendment
- +-- taxation, supply and expenditure authorisation
- +-- representation of people and States
- +-- executive accountability
- +-- deliberation, petitions, committees and public record
- `-- constitutionally limited: competence + rights + federalism + review + basic structure

Cross-links after minimum rule:

- Article 75(3): Council collectively responsible to Lok Sabha -> detailed owner Topic 16.
- Article 123: temporary ordinance power during the specified recess condition -> President interface.
- Tenth Schedule: defection grounds and adjudication -> anti-defection owner.
- Article 368: special amendment procedure and basic-structure limit -> amendment owner.

ASCII MASTER FLOW — PANEL 2/12: Composition, election, duration and delimitation

Ancient sabha/samiti -> historical vocabulary, not direct legal source
1861-1935 councils -> representation, questions, budget discussion and bicameral experience
1946-49 Constituent Assembly -> responsible government + bicameralism + constitutional supremacy
1950 Articles 79-122 commence
1951 First Amendment, s.6 -> substituted Article 85(1)-(2): six-month inter-session ceiling plus presidential prorogation/dissolution powers
1952 first Lok Sabha / Council of States begin
1985 52nd Amendment -> Article 102(2) + Tenth Schedule defection disqualification
2001 84th Amendment, ss.3-7 -> Article 81(3) proviso, Article 82 third proviso and linked Articles 170/330/332:
 freeze extended to first post-2026 census publication; 1991 data enabled limited boundary/reserved-seat
 readjustment
2003 87th Amendment, ss.2-5 -> Article 81(3) proviso cl.(ii), Article 82 third proviso cl.(ii), Article
 170(2)/(3) Explanations and Article 330 Explanation: 1991 replaced by 2001 census
2019 104th Amendment, s.2 -> Article 334 long line: eighty years for cl.(a) SC/ST reservation, seventy years for
 cl.(b) Anglo-Indian special representation; latter ceased after 2020
2023 106th Amendment, ss.2-5 -> inserted Article 239AA(2)(ba)-(bc), Articles 330A/332A/334A: one-third women's
 reservation, including within SC/ST seats, after the census-publication/delimitation trigger

ASCII MASTER FLOW — PANEL 3/12: Articles 79-88 organisation and participation

79 -> President + Council of States + House of the People constitute Parliament.

80 -> Rajya Sabha: State/UT representation + 12 presidential nominees in literature, science, art and social service.

81 -> Lok Sabha: State/UT seats and population-representation principles; current elected strength 543, vacancies vary.

82 -> readjustment follows census through parliamentary law/authority, subject to constitutional freeze provisos.

83 -> Rajya Sabha continues; LS normally five years; Emergency extension one year at a time, max six months after cessation.

84 -> citizenship, prescribed oath-related requirement, age 30 RS/25 LS and qualifications by parliamentary law.

85 -> President summons/prorogues and dissolves LS; max six months between last sitting and next session's first sitting.

86 -> President may address either/both Houses and send messages.

87 -> special address after general election and first session each year; Houses discuss the address.

88 -> ministers/Attorney-General may participate across Houses/joint sitting/committees; vote follows membership.

ASCII MASTER FLOW — PANEL 4/12: Articles 89-106 officers, secretariats and membership

89-92 -> Vice-President is ex officio RS Chairman; RS elects Deputy Chairman; vacancy/acting/removal safeguards decoded.

93-96 -> LS elects Speaker/Deputy Speaker; effective-majority removal + 14 days' notice; Speaker survives dissolution to new House's first sitting.

97 -> presiding-officer salaries/allowances by parliamentary law and charged on Consolidated Fund.

98 -> each House has separate secretariat; common posts possible; Parliament regulates service conditions.

99 -> Third Schedule oath/affirmation before taking seat.

100 -> present-and-voting majority; chair casting vote on equality; vacancies do not invalidate proceedings; quorum one-tenth.

101 -> double membership, resignation, disqualification vacancy and sixty-day unauthorised-absence route.

102(1) -> office of profit, court-declared unsound mind, undischarged insolvency, foreign citizenship/allegiance, statutory grounds.

102(2) -> Tenth Schedule defection disqualification, inserted by 52nd Amendment (1985).

103 -> President decides Article 102(1) sitting-member question after obtaining ECI opinion.

104 -> daily constitutional monetary liability for knowingly sitting/voting before oath or while unqualified/disqualified.

105 -> speech/vote/publication immunity and House privileges; functional, not criminal impunity.

106 -> MPs' salaries/allowances determined by parliamentary law.

Current checked 7 September 2026 -> Speaker Om Birla; LS Deputy Speaker vacant; RS Chairman C. P. Radhakrishnan; Deputy Chairman Harivansh.

ASCII MASTER FLOW — PANEL 5/12: Sessions, language, questions, motions and resolutions

SESSION (President summons/prorogues) -> SITTING (chair adjourns/sine die)

Budget/Monsoon/Winter -> convention, not constitutional categories.

Article 120 -> Hindi or English; chair may permit mother tongue.

Question Hour -> starred oral + supplementaries; unstarred written; short-notice urgent oral; private-member questions possible.

Zero Hour -> informal Indian innovation since 1962; not written in Rules.

Calling Attention -> urgent ministerial statement; no vote.

Adjournment Motion -> LS extraordinary urgent-public-matter censure; fifty-member support.

No-confidence -> LS Rule 198; fifty-member leave; reasons unnecessary; passage tests whole Council under Article 75(3).

Censure -> reasons/policy or actor specified; politically serious but not identical to no-confidence.

Resolution -> self-contained substantive decision/opinion; every resolution is a motion, not every motion a resolution.

Cut motions -> policy Re 1; economy specified reduction; token Rs 100.

ASCII MASTER FLOW — PANEL 6/12: Articles 107-111 legislation, deadlock and lapse

107 -> ordinary Bill may originate either House; both ordinarily agree; prorogation does not lapse Bills.

Ordinary route -> introduction -> principle -> committee/detailed scrutiny -> clauses -> third reading -> second House -> President.

Government Bill -> minister sponsor; Private Member's Bill -> non-minister sponsor under allotted House time.

108 -> eligible deadlock: rejection, final amendment disagreement or >6-month delay -> President may summon joint sitting.

Joint sitting excluded -> Money Bill and Constitution Amendment Bill.

Three instances -> Dowry Prohibition 1961; Banking Service Commission Repeal 1978; POTA 2002.

109 -> Money Bill LS-only; RS recommendations within 14 days; LS may accept/reject; no joint sitting.

110 -> Bill must contain ONLY listed money matters + incidental provisions; Speaker certifies.

111 -> President: assent/withhold; may return non-Money Bill once; repassage makes assent mandatory.

Lapse on LS dissolution -> Bill pending in LS; Bill passed by LS pending in RS.

No lapse -> RS-pending not passed by LS; both-House-passed awaiting assent; returned Bill; notified joint-sitting intention.

ASCII MASTER FLOW — PANEL 7/12: Articles 112-119 budget and financial control

112 Annual Financial Statement -> estimated receipts/expenditure + charged/voted split.
113 -> charged expenditure discussed, not voted; LS votes demands for grants on presidential recommendation.
114 -> Appropriation Act legally authorises withdrawal from Consolidated Fund.
115 -> supplementary/additional/excess grants.
116 -> vote on account / vote of credit / exceptional grant.
117(1) Financial Bill-I -> Article 110 matter + other matter; LS-only introduction + recommendation; RS otherwise ordinary power.
117(3) Financial Bill-II -> either-House origin; recommendation before consideration; ordinary bicameral power.
118 -> House rules and joint-sitting procedure.
119 -> Parliament may by law regulate financial-business completion.
Power-of-purse chain -> Budget -> grants/cut motions -> appropriation -> execution -> CAG -> PAC.

ASCII MASTER FLOW — PANEL 8/12: Committees, delegated legislation and executive scrutiny

Standing -> financial / DRSC / inquiry / scrutiny-control / day-to-day House committees.

Ad hoc -> Select or Joint Committee on Bill; inquiry JPC.

PAC -> 22 (15 LS+7 RS); CAG-linked post-expenditure regularity; Opposition chair by convention.

Estimates -> 30 LS only; economies, efficiency and estimate presentation.

CoPU -> 22 (15 LS+7 RS); specified public undertakings.

DRSCs -> 24; normally 31 each (21 LS+10 RS); demands, referred Bills, annual reports, long-term policy; ministers barred.

Subordinate Legislation Committee -> checks rules/regulations against parent Act, delegation and procedure.

Government Assurances Committee -> tracks ministerial undertakings on floor.

Ethics Committee -> unethical conduct; distinct from privilege breach.

Private Members' Bills and Resolutions Committee -> classification/time allocation for LS private business.

Committee value -> time + expertise + evidence + cross-party work.

Limit -> advisory reports + discretionary referral + one-year term + attendance/research constraints.

ASCII MASTER FLOW — PANEL 9/12: Rajya Sabha, Lok Sabha and sovereignty limits

EQUAL -> ordinary Bills, Article 368 amendments, impeachment/removal participation, elections where Constitution so provides.

LOK SABHA SPECIAL -> confidence Art 75(3); demands Art 113; Money/Financial-I origin Arts 109/117; joint-sitting numbers.

RAJYA SABHA SPECIAL ->

Art 249: 2/3 present/voting national-interest resolution opens temporary State-List competence.

Art 312: same gateway authorises creation of All India Service by parliamentary law.

Art 67(b): initiates Vice-President removal; LS agrees.

Arts 352/356/360: approval-continuity bridge when LS is dissolved, subject to later LS approval.

INDIAN PARLIAMENT != WESTMINSTER SOVEREIGN ->

limited by Seventh Schedule competence, Fundamental Rights, federalism, special procedures, judicial review and basic structure.

ASCII MASTER FLOW — PANEL 10/12: Amendments, cases and ordinance interface

First Amendment 1951, s.6 -> substituted Article 85(1)-(2): six-month inter-session control and presidential prorogation/dissolution powers.

31st Amendment 1973, s.2 -> Article 81(1)(a)-(b) and proviso to Article 81(2)(a): raised then-applicable State

ceiling to 525, fixed UT ceiling at 20 and protected small States from strict inter-State ratio.

42nd Amendment 1976, ss.24-25 -> proviso to Article 81(3) and third proviso to Article 82: 1971 census basis retained until publication of the first census after 200

52nd Amendment 1985, s.3 and Schedule -> inserted Article 102(2) and the Tenth Schedule: parliamentary defection becomes disqualification.

61st Amendment 1988, s.2 -> Article 326: voting age reduced from 21 to 18, enlarging the Lok Sabha electorate.

84th Amendment 2001, ss.3-7 -> Article 81(3) proviso, Article 82 third proviso and linked Articles 170/330/332: extended the freeze and enabled 1991-based limited re

87th Amendment 2003, ss.2-5 -> Article 81(3) proviso cl.(ii), Article 82 third proviso cl.(ii), Article 170(2)/(3) Explanations and Article 330 Explanation: 1991 rep

104th Amendment 2019, s.2 -> Article 334: cl.(a) SC/ST reservation extended to eighty years; cl.(b) Anglo-Indian special representation retained only for seventy yea

106th Amendment 2023, ss.2-5 -> Article 239AA(2)(ba)-(bc) plus Articles 330A/332A/334A: one-third women's reservation, including SC/ST sub-reservation, after the sta

Kuldip Nayar (2006) -> upheld RS open ballot and removal of State-domicile requirement.

Kihoto Hollohan (1992) -> Speaker's Tenth Schedule decision subject to judicial review.

Lily Thomas (2013) -> invalidated RPA s.8(4) sitting-member conviction shield.

Raja Ram Pal (2007) -> expulsion power exists, but privilege action is reviewable for substantive illegality.

Sita Soren (2024) -> bribery for speech/vote receives no legislative immunity; overrules PV Narasimha Rao on that point.

Roger Mathew (2019) -> Money Bill certification not wholly immune; broader Article 110 issue referred to larger Bench.

D.C. Wadhwa (1987) / Krishna Kumar Singh (2017) -> routine ordinance repromulgation is constitutionally impermissible.

ASCII MASTER FLOW — PANEL 11/12: Current control, traps, ethics and reform

106th Amendment -> commenced 16 April 2026; reservation still non-operational under Article 334A sequence.

Census 2027 -> notified; publication date of relevant figures and delimitation date remain unknown.

2026 delimitation-linked Bills -> introduced, constitutional amendment defeated 17 April 2026; proposals never became law.

Roger Mathew larger-Bench Article 110 issue -> no final official judgment located by 7 September 2026.

TRAPS:

- President part of Parliament, not House member.
- RS State seats unequal; RS permanent, members not permanent.
- Article 85 has no three-session or sitting-day minimum.
- Speaker continues after dissolution; no constitutional party-resignation duty.
- Money Bill != every Finance Bill; Appropriation != taxation.
- charged expenditure discussable, not voted.
- joint sitting excludes Money and amendment Bills.
- Article 122 irregularity shield != immunity from substantive review.

REFORM:

minimum sitting calendar + default committee referral + protected Question Hour

+ reasoned/timely presiding rulings + narrower survival whip

+ pre-legislative consultation + post-legislative review + research support.

ASCII MASTER FLOW — PANEL 12/12: PYQ routes, answer spine and qualified verdict

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1 DEFINE -> Article 79 tripartite, bicameral and constitutionally limited institution.
2 CLASSIFY SOURCE -> text / statute / House rule / convention / judgment / dated practice.
3 MAP MECHANISM -> representation -> deliberation -> legislation/supply -> scrutiny -> accountability.
4 NAME EVIDENCE -> exact Article + committee/case/amendment + one-line effect.
5 EVALUATE -> formal capacity versus political use; popular mandate versus federal revision.
6 QUALIFY -> procedure autonomy does not erase constitutional review; stability does not justify deliberative bypass.
7 REFORM -> target the diagnosed mechanism, not generic 'strengthening'.
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VERDICT:

Parliament remains constitutionally powerful but never sovereign; democratic authority becomes legitimate when popular choice, federal revision, financial consent, detailed scrutiny and constitutional limits operate together.